

Supplementary Opinion of the National Commission for Data Protection regarding Bill No. 7989 amending the amended law of September 2, 2011 regulating access to the professions of artisan, merchant, industrialist, as well as certain liberal professions
Deliberation No. 60/AV34/2023 of July 14, 2023

1. In accordance with Article 57.1.e) of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (hereinafter referred to as the "GDPR"), to which Article 7 of the law of August 1, 2018 organizing the National Commission for Data Protection and the general regime on data protection refers, the National Commission for Data Protection (hereinafter referred to as the "National Commission" or the "CNPDP") "advises, in accordance with the law of the Member State, the national parliament, the government, and other institutions and bodies regarding legislative and administrative measures relating to the protection of the rights and freedoms of natural persons with regard to processing."
Article 36.4 of the GDPR states that "Member States consult the supervisory authority in the context of the preparation of a legislative proposal to be adopted by a national parliament, or of a regulatory measure based on such a legislative measure, which relates to processing."

2. On April 7, 2023, the CNPD issued its opinion on Bill No. 7989 amending the amended law of September 2, 2011 regulating access to the professions of artisan, merchant, industrialist, as well as certain liberal professions (hereinafter referred to as the "Bill") and on the draft Grand-Ducal Regulation aimed at determining the composition and functioning of the Second Chance Commission and amending certain other Grand-Ducal regulations.

3. On May 19 and June 8, 2023, two series of parliamentary amendments to the Bill were adopted, followed by a new parliamentary amendment dated July 5, 2023.

1 Deliberation No. 30/AV17/2023 of April 7, 2023, of the National Commission for Data Protection, doc. pari. 7989/14.

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Mr. Minister of the Middle Classes invited the CNPD to express its opinion on the respective amendments, most recently by letter dated July 6, 2023.

4. The amendments aim in particular to provide clarifications regarding the assessment of honorability as well as the communication of data between the minister and various administrations. This opinion is based on the coordinated text of the Bill as annexed to the parliamentary amendment of July 5, 2023.

I. On the assessment of honorability

5. In its opinion of April 7, 2023, the National Commission noted the lack of precision of several concepts used by Article 6 of the amended law of September 2, 2011 regulating access to the professions of artisan, merchant, industrialist, as well as certain liberal professions (hereinafter referred to as the "amended law of September 2, 2011") as modified by the initial Bill. It positively notes that the parliamentary amendment of July 5, 2023 provides clarifications to make the text clearer and more predictable for the public.

On the data communications provided for by the Bill

6. Amendment 14 of May 19, 2023 introduces a new Article 18 which replaces the previous Articles 30 to 35 of the initial Bill, which aimed to regulate the communication of data between the minister and various administrations in order to control whether the conditions for granting establishment permits, as provided by the amended law of September 2, 2011, are met.

7. The National Commission welcomes the authors' efforts to rephrase these articles by providing

clarifications regarding certain concepts and the information exchange mechanism established between these actors. Indeed, it is now provided that the administrative authorities inform the minister, notably to ascertain certain specific shortcomings, and no longer that the minister must "regularly inquire" with them. However, the question arises regarding the coherence of the proposed mechanism, particularly in light of the fact that Article 32.2 of the amended law of September 2, 2011 provides for direct access by the minister to files held by other administrative authorities, whereas it results from Articles 326/s to 32nonies that it is the responsibility of the administrative authorities to inform the minister of relevant elements.

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8. Furthermore, the CNPD welcomes the amendments made to the new article 32quinquies of the amended law of September 2, 2011. The initial draft of the law provided for the communication of all criminal records registered in criminal record no. 3. Following the parliamentary amendments submitted on May 19, 2023, the draft law under review now stipulates that the public prosecutor informs the minister of final convictions deemed particularly serious, which are listed in this article. For the remainder, the National Commission refers to its opinion of April 7, 2023.

Thus adopted in Belvaux on July 14, 2023.

The National Commission for Data Protection

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